DATA PROCESSING AGREEMENT

Synthetic controller–processor agreement | Stronger reference test

DOCUMENT STATUS

Designed as a relatively comprehensive Article 28 GDPR reference example. It is not a legal certification and may still require context-specific review.

IMPORTANT TESTING NOTE

This is a fictional, synthetic contract created for software testing. It is not an executed agreement and must not be relied on as legal advice or as a verified statement of GDPR compliance. Names, addresses, dates, and business facts are fictional.

PARTIES

Controller: Northstar Retail Europe Ltd., 18 Market Square, Dublin, Ireland (fictional).
Processor: CloudLedger Systems Ltd., 42 Harbour Road, Rotterdam, Netherlands (fictional).

AGREEMENT DATE

11 October 2026

1. Definitions and roles

In this Agreement, “Controller”, “Processor”, “Personal Data”, “Personal Data Breach”, “Processing”, and “Data Subject” have the meanings given in Regulation (EU) 2016/679 (the GDPR). The Controller determines the purposes and means of processing. The Processor processes Personal Data on behalf of the Controller only as described in this Agreement and its Annex 1.

2. Subject matter, duration, nature and purpose

The Processor will provide hosted customer-support and order-management software for the Controller for the term of the underlying services agreement. Processing continues for the service term and any limited period needed to return or delete data. Processing consists of hosting, organizing, retrieving, transmitting, and supporting customer-service records for the purpose of managing customer enquiries and orders.

3. Categories of data and data subjects

Data subjects may include the Controller’s customers, prospective customers, and employees who contact customer support. Personal Data may include names, business contact details, order identifiers, customer-service correspondence, and account metadata. The Controller must not upload special-category data unless the parties first document the processing and establish an appropriate legal basis and safeguards.

4. Documented instructions

The Processor shall process Personal Data only on documented instructions from the Controller, including with regard to transfers of Personal Data to a third country or an international organisation, unless required to do so by Union or Member State law to which the Processor is subject. In such a case, the Processor shall inform the Controller of that legal requirement before processing, unless the law prohibits such information on important grounds of public interest. The Processor shall promptly inform the Controller if, in its opinion, an instruction infringes the GDPR or other applicable Union or Member State data-protection provisions.

5. Confidentiality

The Processor shall ensure that persons authorised to process Personal Data are committed to confidentiality or are under an appropriate statutory obligation of confidentiality. Access shall be limited to personnel who require it to perform their duties and shall be removed when no longer required.

6. Security of processing

Taking into account the state of the art, costs of implementation, and the nature, scope, context and purposes of processing, the Processor shall implement appropriate technical and organisational measures pursuant to Article 32 GDPR. Measures include access control, least-privilege permissions, encryption in transit, secure backups, vulnerability management, logging, workforce training, and a documented incident-response process. Measures shall be reviewed periodically and after material changes or incidents.

7. Sub-processors

The Controller grants general written authorisation for the Processor to engage sub-processors listed in Annex 2. The Processor shall notify the Controller in writing of intended additions or replacements at least 30 days in advance, giving the Controller an opportunity to object on reasonable data-protection grounds. The Processor shall impose data-protection obligations on each sub-processor that are no less protective than those in this Agreement and shall remain responsible to the Controller for the sub-processor’s performance of its obligations.

8. Assistance to the Controller

Taking into account the nature of processing, the Processor shall assist the Controller by appropriate technical and organisational measures, insofar as possible, to fulfil the Controller’s obligation to respond to requests to exercise Data Subject rights under Chapter III GDPR. The Processor shall promptly forward requests it receives and shall not respond except on documented instructions or where legally required.

9. Security incidents and personal-data breaches

The Processor shall notify the Controller without undue delay after becoming aware of a Personal Data Breach. The notice shall, to the extent information is available, describe the nature of the breach, categories and approximate number of affected Data Subjects and records, likely consequences, measures taken or proposed, and a contact point. The Processor shall provide additional information in phases as it becomes available and cooperate with the Controller's investigation and notification duties.

10. DPIAs and prior consultation

Taking into account the nature of processing and information available to the Processor, the Processor shall assist the Controller with data-protection impact assessments under Article 35 and prior consultation with a supervisory authority under Article 36, where required.

11. Demonstrating compliance and audits

The Processor shall make available to the Controller information reasonably necessary to demonstrate compliance with this Agreement and Article 28 GDPR. The Processor shall permit and contribute to audits, including inspections, conducted by the Controller or an independent auditor mandated by the Controller, subject to reasonable confidentiality, security, and scheduling requirements. These requirements shall not be used to prevent an audit required by law.

12. International transfers

The Processor shall not transfer Personal Data outside the European Economic Area, or permit access from outside the EEA, unless instructed or authorised by the Controller and the requirements of Chapter V GDPR are met. Before any authorised transfer, the parties shall document the transfer mechanism and any supplementary measures required by applicable law.

13. Return and deletion

At the Controller's choice, the Processor shall delete or return all Personal Data after the end of the services and delete existing copies, unless Union or Member State law requires storage. If retention is legally required, the Processor shall identify the applicable legal requirement where permitted and continue to protect the retained data.

14. Records and cooperation

The Processor shall maintain records of processing activities to the extent required by Article 30(2) GDPR and cooperate with the Controller and competent supervisory authorities as required by law. The Processor shall promptly notify the Controller of legally binding requests for disclosure unless prohibited by law.

15. Liability, precedence and amendments

Each party's liability is governed by the underlying services agreement and applicable law, without excluding liability that cannot lawfully be excluded. If this Agreement conflicts with the underlying services agreement regarding processing of Personal Data, this Agreement prevails for that subject. Amendments must be in writing and agreed by both parties.

Annex 1 — Processing details

Subject matter: hosted customer-support and order-management service.
Duration: service term plus return/deletion period.
Nature and purpose: hosting, retrieval, organisation and support of customer-service records.
Data subjects: customers, prospective customers, relevant employees.
Personal Data: names, contact details, order identifiers, correspondence, account metadata.
Special-category data: not intended; requires prior written documentation and lawful safeguards.

Annex 2 — Authorised sub-processors

1. Northstar Cloud Hosting B.V. (fictional) — infrastructure hosting in the Netherlands.
2. TicketFlow Support Tools GmbH (fictional) — customer-support ticketing in Germany.

The Processor shall keep this list current and provide notice of proposed changes under Clause 7.

SIGNATURES

For the Controller: _____ Name/Title: _____ Date: _____

For the Processor: _____ Name/Title: _____ Date: _____

End of synthetic test contract.